

Shiv Kumar Yadav v. State of U.P.

Allahabad High Court · Division Bench · 6 October 2020 · WRIT - C No. 12137 of 2020 · **Writ dismissed; remaining billing grievance relegated to clause 7.10.**

HEADNOTE

After the Executive Engineer decided the consumer's representation against a demand notice and recovery citation, the High Court dismissed the writ and left any further billing grievance to the competent authority under clause 7.10 of the Electricity Supply Code, 2005. Clauses 5.6 and 6.5, invoked in the prayer for a corrected bill on a new meter, were not construed.

FACTUAL SUMMARY

Shiv Kumar Yadav challenged a demand notice dated 1 August 2019 issued by the Executive Engineer, Electricity Distribution-II, Mughalsarai, U.P. Power Corporation Limited, Chandauli, and a recovery citation dated 1 October 2019 issued by the Tehsildar, Mughalsarai. He sought a mandamus for a correct bill on a newly installed meter under clauses 5.6 and 6.5 of the Electricity Supply Code, 2005. After adjournments, counsel for the Power Corporation produced an order dated 30 September 2020 on the petitioner's representation of 13 January 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum after executive engineer decides billing representation

HOLDING

Where the Executive Engineer has already considered the consumer's representation against a demand notice and recovery citation, any remaining billing grievance is to be taken to the competent authority under clause 7.10 of the Electricity Supply Code, 2005, and the writ is dismissed. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances After the Executive Engineer decided the petitioner's representation on the demand and recovery, the Court dismissed the writ and left further billing grievance to the clause 7.10 forum. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 The Court treated clause 7.10 as the remaining statutory route once respondent No. 2 had already passed an order on the representation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 1.8.2019 AND THE RECOVERY CITATION DATED 1.10.2019

¶ 1

NOT DECIDED — WHETHER A CORRECTED BILL WAS DUE UNDER CLAUSES 5.6 AND 6.5 ON THE NEWLY INSTALLED METER

¶ 1

NOT DECIDED — DISCREPANCY BETWEEN THE AMOUNT IN THE DEMAND NOTICE AND THE RECOVERY CITATION

Raised at the 28.9.2020 listing; not decided in the final order. ¶ 1

